

25STCV30764 25STCV30764

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-11

Motion: DEFENDANT WILLIAM BARNARD's DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

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Case Number: 25STCV30764 Hearing Date: August 11, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

SHANNON

McCLAIN ROBERTSON, an Individual, TATUM ROBERTSON, an Individual; NIAL
ROBERTSON, an Individual; and LENNOX McCLAIN ROBERTSON,

Plaintiffs,

vs.

PHYLISS WHITAKER, as an individual and as Trustee of the
Lillian J. Pawsey Living Trust; WILLIAM BARNARD, an individual; EST ATE OF
LILLIAN J. PAWSEY; and DOES 1through 25, inclusive,

Defendants.

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CASE

NO.: 25STCV30764

[TENTATIVE] ORDER RE: DEFENDANT

WILLIAM BARNARD's DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Dept. 733

8:30 a.m.

August 11, 2026

I.

INTRODUCTION

This case arises

from alleged habitability issues with the residential rental property

located at 2105 W 152nd St,

Gardena, CA 90249-4220 ("the Premises") from on or about June 3, 2022, to on or
about November 28, 2023.

On October 21, 2025,

Plaintiff Shannon McClain Robertson initiated this

action.

On

October 28, 2025, Plaintiffs Shannon McClain Robertson, Tatum Robertson, Niall Robertson and Lennox McClain Robertson ("Plaintiffs") filed a first amended complaint ("FAC") against Defendants Phyllis Whitaker, as an Individual and as Trustee of the Lillian J Pawsey Living Trust, William Barnard, and the Estate of Lilian Pawsey ("Defendants"), alleging causes of action for (1) Breach of Contract, (2) Tortious Breach of Implied Warranty of Habitability, (3) Premises Liability, (4) Negligence, (5) Constructive Eviction, (6) Wrongful Eviction under California Tenant Protection Act, (7) Tenant Harassment, (8) Wrongful Retention of Security Deposit, and (9) Unfair Business Practices.

On

April 13, 2026, Defendant William Barndard ("Barnard") filed the instant demurrer.

No

opposition was filed.

II.

LEGAL STANDARD

A demurrer is an

objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice.

(Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985)

39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984)

153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose

of determining its effect, its allegations must be liberally construed, with a

view to substantial justice between the parties." (Code Civ. Proc., § 452.) The

court "'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . .'" (*Berkley*

v. Dowds (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18

Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a

pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015)

244 Cal.App.4th 118, 226.)

III.

DISCUSSION

Barnard

demurs to all causes of action alleged in the FAC.

1. Breach of Contract

Barnard demurs to the cause of action for Breach of Contract on the ground that he acted as merely a property manager of the Premises and is not a signatory to the Subject Lease. (FAC, Ex. A [residential lease].)

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.)

Here, the Subject Lease identifies that the parties to the Lease are Plaintiff Shannon McClain (with her three minor children) as tenants and Lillian Pawsey as the landlord/owner. (FAC, Ex. A.) The FAC further alleges that Phyliss Whitaker as Trustee of the Lillian J. Pawsey Living Trust is the successor owner of the subject residential premises. (Id. ¶ 5.) Barnard is identified in the FAC as managing the Premises from early 2022. (Id. ¶¶ 6, 28.)

Given that Barnard is not a signatory to the Subject Lease, the Breach of Contract claim fails. (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1071 [property manager “is entitled to judgment on the pleadings as to the cause of action for breach of contract because it was not a party to the lease”].)

The demurrer to the first cause of action is sustained.

2. Tortious

Breach of Implied Warranty of Habitability, Constructive Eviction, Wrongful Eviction, Wrongful Retention of Security Deposit

Barnard demurs to the causes of action
for Breach of the Implied Warranty of

Habitability, Constructive Eviction, Wrongful
Eviction, and Wrongful Retention of Security Deposit the similar ground that Barnard is not alleged to have
been acting as Plaintiff's landlord.

"[A] warranty of habitability is implied by
law in residential leases." (Green v. Superior

Court (1974) 10 Cal.3d
616, 637.) To establish a breach of the implied warranty of habitability,
Plaintiffs must establish (1) "the existence of a material defective condition
affecting the premises' habitability," (2) "notice to the landlord of the
condition within a reasonable time after the tenant's discovery of the condition," (3) "the landlord was
given a reasonable time to correct the deficiency, and" (4) "resulting
damages." (Erlach v. Sierra Asset
Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297; Stoiber v.
Honeychuck (1980) 101
Cal.App.3d 903, 918–919 [... assuming appropriate pleadings of fact, a tenant
may state a cause of action in tort against his landlord for damages resulting
from a breach of the implied warranty of habitability].)

"An eviction is actual when a landlord
takes direct action to physically expel the tenant from the premises. An
eviction is constructive if the landlord engages in acts that render the
premises unfit for occupancy for the purpose for which it was leased, or
deprive the tenant of the beneficial enjoyment of the premises." (Cunningham v. Universal Underwriters (2002) 98
Cal.App.4th 1141, 1152.) "A tenant who is wrongfully evicted by his
landlord before the expiration of the lease term may maintain a wrongful eviction action
for tort damages and punitive damages[.]" (Nativi v. Deutsche Bank Nat'l
Tr. Co. (2014) 223 Cal.App.4th 261, 294.)

Civil Code section 1950.5 governs the
"security for a rental agreement for residential property that is used as the

dwelling of the tenant.” (Civ. Code § 1950.5(a).) “Any security shall be held by the landlord for the tenant who is party to the lease or agreement.” (Id. § 1950.5(d).)

Each of these claims flows within a landlord-tenant relationship. Plaintiff alleges that Barnard was in the position of property manager of the Premises. (Id. ¶¶ 6, 28.) There is simply no allegation that Barnard was Plaintiff’s landlord.

The demurrer to the second, fifth, sixth and eighth causes of action is sustained.

3. Premises

Liability, Negligence, Harassment, Unfair Business Practices

Barnard demurs to the causes of action for Premises Liability, Negligence, and

Harassment on the ground that they are barred by the applicable statute of limitations.

“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 881.)

Claims

for Premises Liability,

Negligence, and Harassment are subject to the two-year

statute of limitations delineated in Code of Civil

Procedure section 335.1 for personal injury claims. (Code Civ. Proc., § 335.1.)

The statute of limitations begins

running “when the cause of action is complete with all of its elements.” (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 389.) “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’ [Citations.] Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period. [Citations.] ... [B]y [previously] discussing the discovery rule in terms of a plaintiff’s suspicion of ‘elements’ of a cause of action, [we were] referring to the ‘generic’ elements of wrongdoing, causation, and harm.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807.) Put differently, under the discovery rule, “the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing.” (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110.) “By statute, the discovery rule applies to fraud actions.” (E-Fab, Inc. v. Accts., Inc. Servs. (2007) 153 Cal.App.4th 1308, 1318.)

In California, the default rule for accrual is that “an action accrues on the date of injury.” (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1109.)

Here, Plaintiffs allege that once Barnard received management responsibilities, Plaintiff’s “repair requests were either ignored or completely disregarded.” (FAC ¶ 28.) From January 2022 onward, Barnard “failed to address critical habitability issues, including electrical hazards, broken cabinetry, malfunctioning garbage disposal, and plumbing issues.” (Ibid.) “By September 2023, [Plaintiff’s] children were experiencing chronic respiratory issues, which had been formally diagnosed as mold toxicity following blood tests.” (Id. ¶ 35.) These allegations form the basis for Plaintiff’s claims. Thus, on the face of Plaintiff’s FAC, her claims arising from these allegations accrued latest September 2023, when the mold toxicity injuries were discovered and formally diagnosed. Plaintiff filed her original complaint on October 21, 2025, over two years later. To the extent that these claims are premised on other potential alleged violations, such as failure to resolve issues regarding termite infestation or attempt to enter the Premises without proper notice, both

violations allegedly occurred prior to September 2023. (Id. ¶¶ 43-45, 49.)

The demurrer to the third, fourth, and seventh causes of action is sustained.

Specifically, for the UCL claim, the UCL statute of limitations is “governed by common law accrual rules.” (Aryeh v. Canon Bus. Sols., Inc. (2013) 55 Cal.4th 1185, 1195.) “[T]he underlying nature of the claim, not its form, should control.” (Ibid.; see Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 718 [“[T]he nature of the right sued upon, not the form of action or the relief demanded, determines the applicability of the statute of limitations.”].) Consequently, “just like common law claims challenging fraudulent conduct, a UCL deceptive practices claim should accrue ‘only when a reasonable person would have discovered the factual basis for a claim.’” (Aryeh, supra, 55 Cal.4th at p. 1195.)

Here, the harm underlying Plaintiff’s UCL claim against Barnard is the same harm underlying Plaintiff’s Premises Liability, Negligence, and Harassment claims. Therefore, similarly with the above causes of action, the UCL claim accrued when the alleged harm was completed, which is when Plaintiff is alleged to have discovered the injuries stemming from the toxic mold, resulting from Barnard failure to take action “to address [Plaintiff’s] concerns regarding the HVAC system or contamination within the Premises.” (FAC ¶ 31.)

The demurrer to the ninth cause of action is sustained.

4.
Exemplary
Damages

Plaintiff’s claim for “exemplary damages” fails because it is not cognizable cause of

action. It is a remedy, for which a Plaintiff must establish by clear and convincing evidence that a defendant acted with fraud, malice, or oppression. Nevertheless, the Court does not find that Plaintiff has alleged “oppression, fraud, or malice” with the requisite specificity. (Grieves

v. Superior Court (1984) 157 Cal.App.3d 159, 166 [“the mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim”].) Furthermore, given that the Court otherwise sustained the demurrer in its entirety, there is no viable cause of action an award of punitive damages can be based upon. (See 569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 429 fn.3 [“a claim for punitive damages is merely an additional remedy that is dependent on a viable cause of action for an underlying tort.”].)

the
demurrer to the tenth cause of action is sustained.

IV. CONCLUSION

Based on the foregoing, Barnard's
demurrer is SUSTAINED in its entirety with thirty (30)

days leave to amend.

Dated this 11th
day of August 2025

Hon. Gary
D. Roberts

Judge
of the Superior Court